

3. 9:00 AM CASE NUMBER: L24-06739
CASE NAME: JOHN LANGERSTON VS. JOHN KANG
***HEARING ON MOTION IN RE: PLAINTIFF'S MOTION TO TAX COSTS**
FILED BY: LANGERSTON, JOHN
TENTATIVE RULING:

Plaintiff moves to tax costs. (This is separate from the pending motion to award attorney's fees as a sanction under Code of Civil Procedure section 128.5.) The appropriateness and necessity of costs is best decided by the judge who presided over the case and trial. Accordingly, the Court continues this motion until January 12, 2027, 9:00 a.m., when Judge Athanasiou will be available. Plaintiff is to give notice.

4. 9:00 AM CASE NUMBER: L25-02597
CASE NAME: AMERICAN EXPRESS NATIONAL BANK VS. JOSEPH RELVA
***HEARING ON MOTION IN RE: MSJ**
FILED BY:
TENTATIVE RULING:

Plaintiff filed a Motion for Summary Judgment (the "MSJ"), along with a Declaration and a Separate Statement of Undisputed Material Facts. The Motion and supporting documents are unopposed.

Plaintiff timely served Defendant, who is self-represented.

Analysis

The procedure by which a party may seek pretrial entry of judgment on the ground that there is no dispute of material fact is summary judgment or, when the request is for a dispositive ruling on one of multiple claims within an action, summary adjudication. Code Civ. Proc. § 437c; Rule 3.1350 of the California Rules of Court (CRC); see *Weiss v. People ex rel. Dept. of Transportation* (2020) 9 Cal.5th 840, 864; see generally CJER, *California Judges Benchbook: Civil Proceedings before Trial* (2022) ("CJER Civ. Proc. before Trial"), § 13.2 et seq. A motion for summary adjudication shall be granted only if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty. Code Civ. Proc. § 437c(f)(1).

Courts deciding motions for summary judgment or summary adjudication may not weigh the evidence but must instead view it in the light most favorable to the opposing party and draw all reasonable inferences in favor of that party. *Weiss v. People ex rel. Dept. of Transportation*, *supra*, 9 Cal.5th at 864. To ensure that the opposing party has notice of the

factual issues in dispute and an opportunity to present the evidence relevant to the motion, the parties must submit separate statements of undisputed facts. *Id.* at 864; see Code Civ. Proc. § 437c(c) and CRC 3.1350(d).

The party moving for summary judgment bears the burden of persuasion that there is no triable issue of material fact and that the party is entitled to judgment as a matter of law. *Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850; see CJER Civ. Proc. before Trial, § 13.60. There is a triable issue of material fact if, and only if, the evidence would allow a reasonable trier of fact to find the underlying fact in favor of the party opposing the motion in accordance with the applicable standard of proof. *Id.* A plaintiff bears the burden of persuasion that each element of the cause of action in question has been proved, and hence that there is no defense thereto. *Id.* A defendant bears the burden of persuasion that one or more elements of the cause of action in question cannot be established, or that there is a complete defense thereto. *Id.*

The party moving for summary judgment bears an initial burden of production to make a *prima facie* showing of the nonexistence of any triable issue of material fact; if the moving party carries its burden of production, the burden shifts to the opposing party who then has a burden of production to make a *prima facie* showing of the existence of a triable issue of material fact. *Aguilar v. Atlantic Richfield Co.*, *supra*, 25 Cal.4th at 850.

Cause of Action: Breach of Contract

To establish a claim for breach of contract, a plaintiff must establish: (1) the existence of the contract, (2) plaintiff's performance or excuse for nonperformance, (3) defendant's breach, and (4) the resulting damage to Plaintiff. *Oasis West Realty, LLC v. Goldman* (2011) 51 Cal.4th 811, 821.

In this case, the contract at issue is an American Express cardmember agreement. In the instant matter, the court first finds that the declaration of Cesar Eduardo Cervantes, submitted by the Plaintiff, is admissible under the Business Records exception to hearsay. Mr. Cervantes declared that he was familiar with the record keeping practice of American Express National Bank, and that the records were kept in the ordinary course of business and generated at or about the time of event occurrence.

Next, the court evaluates whether Plaintiff has made a *prima facie* showing of a Breach of Contract.

Plaintiff has provided credit card billing statements and a Cardmember Agreement. The remaining exhibits show a Cardmember Agreement, where the terms, such as making payments for costs incurred, receiving account statements, and the acceptance of the agreement terms by use of the card and account.

These exhibits, coupled with the declaration of Mr. Cervantes, establish a prima facia showing for Breach of Contract, and that the balance owed to the Plaintiff is \$13,845.68. The burden would normally shift to the Defendant at this point, but the Motion is unopposed. In addition, defendant's answer, filed May 22, 2025, does not deny the allegations of the complaint, nor does it assert any affirmative defenses.

Disposition

The Court finds and orders as follows:

1. The MSJ is GRANTED.

Plaintiff to prepare the order after hearing.

5. 9:00 AM CASE NUMBER: L25-05676
CASE NAME: JULIE SCHINDLER VS. STEPHEN ATWATER
***HEARING ON MOTION IN RE: FOR LEAVE TO ADD EXHIBIT "N" TO THE 3RD AMENDED COMPLAINT**
FILED BY: SCHINDLER, JULIE A M
TENTATIVE RULING:

Plaintiff moves for leave to add a new Exhibit, designated as Exhibit N, to the Third Amended Complaint. Defendants argue that the motion is unnecessary, on the ground that the information contained in the proposed Exhibit (a medical record) is already alleged in the Third Amended Complaint. Nonetheless, however, they do not oppose the motion as long as it is not deemed to constitute a Fourth Amended Complaint. The underlying concern appears to be that defendants have demurred more than once, only to have plaintiff amend the complaint again.

Amendments of pleadings are liberally granted, particularly where there is no prejudice to the opposing party.

The motion to amend the Third Amended Complaint by adding Exhibit N is granted with the proviso that the addition of Exhibit N shall not constitute the filing of a Fourth Amended Complaint, including for purposes of any pending or future demurrer or motion to strike. No other changes to the Third Amended Complaint are authorized by this order.

6. 9:00 AM CASE NUMBER: L25-08444
CASE NAME: CAPITAL ONE N.A. VS. YEVGENIYA KOSHTA
***HEARING ON MOTION IN RE: MOTION UNDER CCP 454 TO PRECLUDE PLN ACCT EVIDENCE OR ALT COMPEL FURTHER ACCT FILED BY DEF ON 4/3/26**
FILED BY:
TENTATIVE RULING: